

Dr.N.Yoganandhini vs N.Manikandan on 24 February, 2026

IN THE HIGH COURT OF JUDICATURE AT MADRAS

DATED: 24-02-2026

CORAM

THE HON'BLE DR.JUSTICE A.D.MARIA CLETE

TR CMP No. 890 of 2025

and

C.M.P. No. 20367 of 2025

Dr.N.Yoganandhini

D/o. Namasivayam, No. 489, 6th Cross Road,
Kamatchi Nagar, A-College Road, Paramathi
Velur, Namakkal Dist.

Vs

N.Manikandan

S/o. Nagesh Kumar, No. 141, Thiruvannamalai
Main Road, Theerthamalai Post and Village, Harur
Taluk, Dharmapuri Dist

To withdraw and transfer the H.M.O.P. No. 55 of 2025
of Honble Subordinate Judge, Harur, Dharmapuri District, to Honble
Subordinate Court, Paramathi-Velur, Namakkal District to conduct trial.

For Petitioner(s):

Mr.V.Thillaikumar.

For Respondent(s):

Mr.J.Pradeep.

ORDER

This Transfer Civil Miscellaneous Petition is filed under Section 24 of the Code of Civil Procedure seeking withdrawal of H.M.O.P. No.55 of 2025 pending on the file of the Subordinate Judge, Harur, Dharmapuri District, and transfer of the same to the file of the Subordinate Court, Paramathi Velur, Namakkal District, for disposal in accordance with law.

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2. The case of the petitioner is that the marriage between the petitioner and the respondent was solemnized on 13.04.2022 and they have got no children and due to the matrimonial disputes, they started living separately. The respondent has filed H.M.O.P. No.55 of 2025 before the Subordinate Court, Harur, Dharmapuri District seeking divorce under Section 13(1)(ia) and 13(1) (ib) of the Hindu Marriage Act, 1955.

3. It is stated that the petitioner is residing at Paramathi Velur with her aged parents and she would be put to hardship if required to travel to Harur for every hearing. The affidavit reflects that the petitioner would have to travel a considerable distance (around 133 kms up and down) and that she is constrained to attend the Court with difficulty.

4. The learned counsel for the petitioner submitted that the petitioner-wife has also filed a petition seeking restitution of conjugal rights, which is pending at Paramathi Velur, Namakkal District, and therefore, it would be appropriate that the matrimonial proceedings between the parties are tried within the same jurisdiction to avoid multiplicity and inconvenience and it is also informed that the divorce OP is at the summons/notice stage and this Court has already granted an order of interim stay.

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5. Having considered the above circumstances, and bearing in mind the convenience of the parties, this Court is satisfied that the transfer sought deserves to be ordered.

6. In the result, Tr.C.M.P. No.890 of 2025 is allowed. H.M.O.P. No.55 of 2025 pending on the file of the Subordinate Judge, Harur, Dharmapuri District, is withdrawn and transferred to the file of the Subordinate Court, Paramathi Velur, Namakkal District. The Subordinate Judge, Harur shall transmit the entire records in H.M.O.P. No.55 of 2025 to the Subordinate Court, Paramathi Velur, Namakkal District within a period of three weeks from the date of receipt of a copy of this order. On receipt of records, the Subordinate Court, Paramathi Velur, Namakkal District shall dispose of the matter in accordance with law, as expeditiously as possible, uninfluenced by any of the observations made in this order. Consequently, the interim order of stay granted shall stand vacated and the C.M.P. No.20367 of 2025 is closed. No costs.

24-02-2026 Index: Yes/No Speaking/Non-speaking order Neutral Citation: Yes/No MFA/ay
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MFA To

1.The Subordinate Judge, Harur, Dharmapuri District

2.The Subordinate Court, Paramathi-Velur, Namakkal District and 24-02-2026 _____
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